

		Because the Court sustains the demurrers to Plaintiff's first through sixth causes of action, at this point, there is no underlying claim upon which the relief of constructive trust could be based. As such, the demurrer to the constructive trust claim is sustained with leave to amend, as its viability depends on the existence of an underlying claim. Plaintiff shall have 30 days from the notice of ruling to file and serve her amended complaint. The case management conference is continued to February 8, 2027 at 10:00 a.m. in Department C27. Defendants shall give notice of the ruling.
111	2025-01507066 Marquez vs. Hornet Acquisitionco, LLC	1. Motion to Be Relieved as Counsel of Record 2. Case Management Conference Joshua White's, Mae-Elaine Delos Santos' and Laurel Employment Law, APC's motion to withdraw as counsel for Plaintiff Scott Marquez is granted. Upon the signing of the order, counsel shall serve said order on all parties. Counsel is ordered to again use their best efforts to serve the order on Plaintiff Scott Marquez, including mailing it to Plaintiff's last known address and electronically serving Plaintiff if his email address is known. Joshua White, Mae-Elaine Delos Santos and Laurel Employment Law, APC will be relieved as counsel of record for Plaintiff effective upon the filing of the proof of service of the signed order upon the client and Defendant. The case management conference is continued to February 8, 2027 at 10:00 a.m. in Department C27. Moving party is ordered to submit an updated order with the continued CMC date. Laurel Employment Law, APC shall give notice of the ruling.
112	2025-01467788 Alazzawi vs. Fletchall Silva	1. Motion for Determination of Good Faith Settlement 2. Case Management Conference Defendant/Cross-Defendant Jason Michael Fletchall-Silva moves for an order determining that the settlement he reached with Plaintiff was made good faith pursuant to Code Civ. Proc., § 877.6. "A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault." (See Code Civ. Proc., §877.6(c)). In order to determine a settlement was made in "good faith," a Court takes into consideration the facts and circumstances of the particular case. (See <i>Tech-Bilt, Inc. v. Woodward-Clyde & Associates</i> (1985) 38 Cal.3d 488, 499). There does not appear to be any evidence of any collusion, fraud or tortuous conduct

		between the settler and the Plaintiff which would make the non-settling parties pay more than their fair share. (See Kimura Decl., ¶ 9.) Defendant states that the settlement amount is reasonable considering Plaintiff's claims against Defendant for the alleged assault and battery on the night at issue, as well as the risks and costs associated with experts, discovery, and trial. Per Code Civ. Proc., §877.6(d), "[t]he party asserting the lack of good faith shall have the burden of proof on that issue." No oppositions were filed. Accordingly, the Court finds that Defendant Jason Michael Fletchall-Silva's settlement with Plaintiff was made in good faith. Thus any claims for liability against Defendant by any other joint tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault, are barred. The case management conference is continued to November 30, 2026 at 10:00 a.m. in Department C27. Defendant shall give notice of this ruling, and file proof of service of same.
113	2023-01304133 Sepulveda vs. BaronHR West, Inc.	1. Motion to Be Relieved as Counsel of Record 2. Trial Setting Conference Eric Welch, Esq.'s motion to be relieved as counsel for Defendant BaronHR West, Inc. is continued to December 7, 2026 at 2:00 p.m. in Department C27. The trial setting conference is continued to the same date and time. Counsel has failed to file proof of service of the moving papers on Plaintiff and his client pursuant to Cal. Rules Ct., Rule 3.1362(d) and Cal. Code Civ. Proc., § 1005(b). In addition, the Court is not satisfied with counsel's representation that he has no reasonable ability to obtain his client's consent because the sole owner/shareholder is incarcerated. Counsel states he was advised that another attorney is handling all remaining civil issues including this case. If this is the case, it should not be difficult to obtain and file a substitution of attorney. Incarcerated individuals have access to counsel and the means to execute documents like a substitution of attorney. Accordingly, Defendant's counsel is ordered to serve notice of the continued hearing date and this order on his client and all other parties and file a proof of service of same pursuant to the Code of Civil Procedure, no later than 5 court days before the new hearing date. With the notice and proof of service, Counsel is also ordered to file a supplemental declaration if he cannot obtain the client's consent to a substitution detailing his efforts made in this respect.
114	2025-01524116 Doe vs. Eyenovia, Inc.	1. Motion – Other 2. Case Management Conference Defendant Michael Rowe's motion to revoke Plaintiff's Doe designation is granted.